

The Parties:

Dulcinea N. Cuellar, Appellee v. Walgreens Co. and Jim Lindsey, Appellants.

(“False Imprisonment Case Analysis: Cuellar v. Walgreens Co.”)

The Court:

Supreme Court of Texas on review from the Sixteenth Court of Appeals of Texas

The Year:

Case No. CV-02-094 (Tex. 2002)

Issue:

Whether Walgreens and its loss-prevention officer falsely imprisoned employee Dulcinea Cuellar during an internal theft investigation, making summary judgment improper.

Rule:

The elements of false imprisonment are: (1) willful detention; (2) without consent; and (3) without authority of law. *Randall’s Food Markets, Inc. v. Johnson*, 891 S.W.2d 640 (Tex. 1995). Detention may be accomplished through physical force or threats, but threats must create just a fear of injury to overcome free will. Employers have a common-law privilege to investigate credible allegations of employee theft.

Application:

Cuellar argued that Walgreens’ investigator detained her for over two hours by threatening she would be handcuffed and taken away if she did not confess. She contended that such threats, combined with her early age and inexperience, created unlawful detention. Walgreens countered that Cuellar voluntarily accompanied the investigator to the “tape room,” was never physically restrained, threatened, or cursed at, and never attempted to leave. Further, Walgreens claimed it acted under its privilege to investigate suspected theft.

The Texas Supreme Court examined Cuellar’s deposition testimony. She admitted that the investigator never touched her, blocked her exit, or told her she could not leave. Although the investigator mentioned police involvement, courts hold that threats to call the police do not make up false imprisonment, absent physical restraint. Unlike the plaintiff in *Skillern & Sons v. Stewart*, who was physically escorted and denied access to counsel, Cuellar kept freedom of movement and voluntarily wrote her statement. Considering her education, prior work experience, and ability to ask clarifying questions, the Court found she was not so overborne as to render the interview an unlawful detention.

Conclusion:

The Court held Cuellar failed to raise a genuine issue of material fact on the element of willful detention without consent or authority of law. The summary judgment in favor of Walgreens and Lindsey was proper.

Holding:

The Texas Supreme Court affirmed the court of appeals' judgment upholding summary judgment for Walgreens and its investigator.

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